

1880

THE AFRICA.

The defendants delivered a rejoinder joining issue on the 3rd paragraph of the amended reply, and demurring to the same paragraph upon the ground, *inter alia*, that the said paragraph did not contain any good or sufficient ground for avoiding the agreement and settlement and payment pleaded in the 6th paragraph of the statement of defence.

Feb. 24. The action and the demurrer to the reply came on to be heard.

Witnesses were examined orally in court on behalf of the plaintiffs and the defendants. The result of their evidence can be gathered from the judgment.

Milward, Q.C., and *Aspinall*, for the plaintiffs, submitted that the agreement set up in the 6th paragraph of the statement of defence was so inadequate, that the Court would disregard it and award a further sum to the plaintiffs.

E. C. Clarkson, and *Phillimore*, for the defendants, contended that even although the amount received by the plaintiffs should be considered less than would have been awarded by the Court, yet the arrangement, having been made in good faith and by competent advisers on behalf of the plaintiffs, ought not to be disturbed.

SIR ROBERT PHILLIMORE. I am of opinion that the agreement in this case does not militate against the provisions of the 182nd section of the Merchant Shipping Act, 1854. The question before me is not whether if the plaintiffs had been plaintiffs in an action of salvage the Court would have awarded them more or less than the sum which they have agreed to accept, but whether any good ground has been shewn for the Court interfering with the arrangement that has been made. No doubt if any fraud or concealment had been shewn the Court would not hesitate to have the whole case re-opened, but in my opinion no evidence has been offered tending to shew any fraud or concealment or any disreputable conduct in order to induce the plaintiffs to sign a receipt. Throughout the whole transaction they were assisted by a solicitor, who appears to have acted in perfect good faith, and indeed there is nothing extravagantly wrong in the settlement itself. In these

circumstances it would, in my opinion, be wrong to allow the matter to be re-opened. I must therefore dismiss the action with costs. 1880. THE AFRIKA.

Solicitor for plaintiffs: *H. C. Coote.*

Solicitors for defendants: *Rollit & Sons.*

[IN THE COURT OF APPEAL.]

Feb. 27.

THE PARLEMENT BELGE. (1878. O. 60.)

Public Vessel—Exemption from Arrest—Trading by Public Vessel.

As a consequence of the absolute independence of every sovereign authority and of the international comity which induces every sovereign state to respect the independence of every other sovereign state, each state declines to exercise by means of any of its Courts any of its territorial jurisdiction over the person of any sovereign or ambassador, or over the public property of any state which is destined to its public use, or over the property of any ambassador, though such sovereign, ambassador, or property be within its territory:—

Held, therefore, reversing the decision of the Admiralty Division, that an unarmed packet belonging to the sovereign of a foreign state, and in the hands of officers commissioned by him, and employed in carrying mails, is not liable to be seized in a suit in rem to recover redress for a collision, and this immunity is not lost by reason of the packet's also carrying merchandize and passengers for hire.

THIS was an appeal on behalf of the Crown from a decision of Sir R. J. Phillimore. (1)

1879. Dec. 11, 12, 13, 20. *Sir H. S. Giffard, S.G.*, the Admiralty Advocate (*Dr. Deane, Q.C.*), and *A. L. Smith*, for the appeal. This is a public ship, and apart from the convention she is not liable to seizure. She belongs to the King of the Belgians in his public character, and if she was trading contrary to her public character that is a question which cannot be raised by a private foreigner though our government might have a right to complain. The property of one sovereign is not subject to seizure in the territories of another, and that the vessel is not armed makes no difference. The carrying arms is only the most usual proof that a ship belongs to the government and is employed for public purposes. *The Exchange* (2) was a strong case, but it has always

(1) 4 P. D. 129.

(2) 7 Cranch, 116.

Referred to. DOLLFUS
MIEG CASE.
[1949] 1 Ch. 389

64/1/100
820
Considered. SULTAN
OF JOHORE V. ABU-
BAKAR
[1952] A.C. 318

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 THE
PARLEMENT
BELGE.

been accepted. Any property of a sovereign is protected: *Vavas-seur v. Krupp*. (1) The goods on board may not be protected, but that does not affect the ship: *The Prins Frederik* (2); *Briggs v. The Light-ships*. (3) This ship is employed by the King of the Belgians, officered by him, and carries his flag. She has been invited to the ports of this country under the belief that irrespective of the treaty she would not be subject to our laws. Moreover, she has been declared by the Crown to be a public ship, and this declaration is conclusive. The Court cannot go behind the declaration of the Crown as to the political status either of persons or things. The Crown determines what is an independent government. The Crown declares a blockade, and many other cases may be put. It is argued that this gives the Crown a power inconsistent with the constitution, but that is not so.

[BRETT, L.J. Can her Majesty give to a private ship privileges not recognised by international law?]

It is not necessary to say that she can, but her Majesty's declaration that the ship is a public ship is conclusive. The international law is part of the common law of England: *Triquet v. Bath* (4), and by international law a public ship is free from arrest. The general language of Acts of Parliament however large is construed *salvo jure reginæ*.

[*Webster, Q.C.* That is not disputed.]

Then the question is, whether her Majesty can recognise, and by recognising affirm, the political character of a thing so as to free it from the ordinary jurisdiction of the Courts. Every person residing here is subject to the laws of this country, and the proposition in *Viner's Abridgment*, *Prerogative*, T. 7, 8, that the Queen cannot give a foreigner an exemption from being impleaded here is not disputed, but if by a principle of international law a person having a particular character is not liable to be so impleaded the Queen's recognition of him as having that character is conclusive in all her Courts.

[BRETT, L.J. I do not feel clear that if her Majesty chose thus to recognise as ambassador a person who had not been sent by any foreign government he could claim the privileges of an ambassador.

(1) 9 Ch. D. 351.

(2) 2 Dod. 451.

(3) 11 Allen (Mass.), 157.

(4) 3 Burr. 1478.